PERFORMANCE AGREEMENT

2026/2027 FINANCIAL YEAR

Made and Entered into by and between

THE NKANGALA DISTRICT MUNICIPALITY

Herein represented by

NOMHLE THEMBSILE MAPHANGA
SENIOR LEGAL ADVISOR

(Herein after referred to as the "**Employer")**

And

MAHLANGU THOMAS P
LEGAL ADVISOR

(Herein and after referred to as the **"Employee"**)

For the period

01 July 2026 – 30 June 2027

Employee's Signature | Supervisor' Signature | PMS Official's Signature

WHEREBY IT IS AGREED AS FOLLOWS:

1. PURPOSE

1.1 Comply with the provisions of legislation, Policy, signed job description and the regulations pertaining to performance management.
1.2 Specify objectives and targets defined and agreed to with the employee and to communicate to the employee the employer's expectations of the employee's performance and accountabilities in alignment with the signed job description.
1.3 Specify accountabilities as set out in a performance plan, which forms an annexure to the performance agreement.
1.4 Monitor and measure performance against set targeted outputs.
1.5 Use the performance agreement as the basis for assessing whether the employee has met the performance expectations applicable to his/her job.
1.6 In the event of outstanding performance, to appropriately reward the employee, and.
1.7 Give effect to the employer's commitment to a performance-orientated relationship with its employee in attaining equitable and improved service delivery.

2. VALIDITY OF THE AGREEMENT

2.1 The agreement will be valid for the period **01/07/2026 to 30/06/2027**.
2.2 The content of the agreement to be revised (during the beginning of financial year or when the individuals job responsibilities are amended) for the abovementioned period to determine the applicability of the performance targets agreed upon, especially where changes are significant; and
2.3 If at any time during the validity of this agreement the work environment of the Employer (whether as a result of Council, Management decisions or otherwise), to the extent that the contents of this agreement are no longer appropriate, the contents will immediately be revised.

3. REPORTING REQUIREMENTS/LINE AND ASSESSMENT LINES

3.1 The Individual will:

- Timeously alert the Supervisor of any emerging factors that could preclude the achievement of any performance agreement undertaking that includes the proposed contingency measures to be taken,
- Establish and maintain appropriate internal controls and reporting systems in order to meet performance expectations; and
- Discuss and thereafter document (record any revision of targets as well as progress made towards the achievement of performance agreement measures) for future use.

3.2 In turn the Supervisor shall:

- Supervise all the activities undertaken by the Individual.
- Meet to provide feedback on performance and to identify areas for development at least four times a year.
- Create an enabling environment to facilitate effective performance by the Individual.
- Monitor, coach and ensure that Individual achieves the set targets.
- Work collaboratively to solve and generate solutions to problems within the unit that may negatively be impacting on the Individual's performance;
- Develop employees through the Performance Development Plan's (PDPs); and

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- Review and verify reports and POEs.

3.3 The Divisional Manager/ Manager and General Manager shall:

- Assist in resolving challenges that may occur.
- Ensure a common understanding of performance expectations.
- Constantly improve employee competencies and raise employees' eagerness to meet performance expectations; and
- Develop employees through Performance Development Plan's (PDPs).

NB: The General Managers, Managers, Divisional Managers and Supervisors must facilitate and develop work plans with their subordinates, set Key Performance Indicators (KPIs) and sign Performance Agreements in line with the approved and signed Job Descriptions. The General Managers and Managers must review all performance agreement for all levels before due date and sign them off. Unit heads reporting directly to the Office of the Municipal Manager must review the performance agreements for all levels in their respective units before the due date and sign them off.

4. PERFORMANCE ASSESSMENT FRAMEWORK

The Individual's performance will be assessed according to the information contained in the Job Description as set out in the Workplan's Key Performance Area and JOB SPECIFIC COMPETENCIES (JSC) framework in line with SDBIP of the Unit in accordance with the PMDS Policy.

4.1 The attached workplan outlines the Individual performance expectations i.e.:

- the standard to be met, what would indicate and the timeframe to be taken to achieve your targets (what, why and how it should be done);
- the resources/enabling conditions that is required to do what is expected; and
- the enabling condition (what can be done to ascertain your achievement) and identifying anything which may impact negative on your work performance.

4.2 The KPA will weigh 80% of the overall performance. The Individual KPAs set out for this current financial year are as follows:

KPA	Key performance areas (KPA'S)	Weighting
1.	KPA: 1 Good Governance and Institutional Transformation	55
2.	KPA: 2 Financial Viability	09
3.	KPA 3 Contract Management	08
4.	KPA: 4 Litigation Management	18
5.	KPA: 5 POPIA/PAIA Compliance	10
6. TOTAL		**100%**

The list of tasks/ duties and responsibilities contained in this document is not necessarily exhaustive, and the Employer is entitled to instruct the Individual to carry out additional duties or responsibilities, which may fall reasonably within the ambit of the role profile, or in accordance with operational requirements.

NOTE: Weighting for ONE (1) KPI must not be above 20%
Weighting for all KPAs must total 100%
The number of KPA must consist of not less than five (5) and not more than seven (7).

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4.3 The Individual undertakes to focus and actively work towards the promotion and implementation of the KPAs within the framework of the Laws and Regulations governing Local Government. The specific duties/outputs required under each of the KPAs are outlined in the attached Workplan.

4.4 The JOB SPECIFIC COMPETENCIES (JSC) will weigh 20% of the overall performance of Individual. The JSCs relevant to the Individual's KPA's and work environment (Annexure A of the New Staff Regulation) are as follows:

JSC	Competency	Competency Definition	Level of Capability	Weighting % (total 100%)
Core Professional competencies				
	Written Communication/drafting	Ability to write and formulate correspondence to instruct attorneys and respond to the incoming correspondences from other attorneys. Demonstrated the ability and depth knowledge of drawing pleadings, legal memorandums, legal opinions, service level agreements, employment contracts and legislation independently without the supervision of the supervisor and/or a legal practitioner.	3	20%
	Ethics and professionalism	Ability to demonstrates depth of the core competencies in the legal fraternity, professional and ethics. Explore the alternative dispute resolution in matters of mutual interest to be resolved outside court proceedings to avoid protracted court proceedings.	3	20%

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JSC	Competency	Competency Definition	Level of Capability	Weighting % (total 100%)
Core Professional competencies				
Functional Competencies				
	Litigation Management	Analyses legal documents and provide the necessary legal advice to the management and/or council. Manages the external service providers (legal firms) procured by the municipality and guide / influence options for approach on litigation matters. Demonstrates knowledge of the court systems and court practices and a clear understanding of the applicable court rules and procedures.	3	20
Personal Competencies				
	Resilience	Demonstrates the ability to plan for the work accordingly and ensure the adherence to the timelines.	3	20%
Management / leadership competencies				

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JSC	Competency	Competency Definition	Level of Capability	Weighting % (total 100%)
Core Professional competencies				
	Team orientation	Ability to work as a team setting clear goals and provide guide to achieve the goals.	3	20%
TOTAL				**100%**

NOTE: Adherence to JSC is mandatory for all Individuals
Weighting for ONE JSC must not be below 15% and not more than 25%
Weighting for all JSCs must total 100 %
The number of JSCs must consist of not less than five (5) and not more than six (6).

5. CONDITIONS OF PERFORMANCE

The Employer will provide the Individual with the necessary resources to enable the Individual to achieve the set indicators and guidance to perform in terms of this agreement. Resource requirements should be outlined in the Workplans of the Individual.

6. PERFORMANCE ASSESSMENT

The assessment of an Individual will be based on his/her performance in relation to the KPAs and JSCs and performance indicators, as set out in this Performance Agreement and attached Workplan.

6.1 KPAs will be assessed by reviewing all KPIs in a 5-point rating scale tabled as follows:

Level	Terminology	Description	Assessment Score	Performance Bonus Ratios
5	Outstanding performance	Performance far exceeds the standard expected of a staff member at this level. The appraisal indicates that the staff member has achieved above fully effective results against all performance criteria and indicators as specified in the Performance Agreement and Performance Plan and maintained this in all areas of responsibility throughout the year. The appraisal indicates that the staff member has achieved above fully effective results against more than 100% of the performance criteria and indicators	75-100	Maximum bonus allowed into. Regulations is between 10% and 14% of person`s inclusive annual remuneration package. The % are as follows: 75-76%=10% 77-78%=11% 79-80%=12% 81-84%=13% 85-100%=14%

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Level	Terminology	Description	Assessment Score	Performance Bonus Ratios
		and fully achieved all others throughout the year.		
4	Performance significantly above expectations	Performance is significantly higher than the standard expected in the job. The appraisal indicates that the staff member has achieved above fully effective results against more than half of the performance criteria and indicators and fully achieved all others throughout the year.	65-74	Maximum bonus allowed into. Regulations is between 5% and 9% of person`s inclusive annual remuneration package. The % are as follows: 65-66%=5% 67-68%=6% 69-70%=7% 71-72%=8% 73-74%=9%
3	Fully effective	Performance fully meets the standards expected in all areas of the job. The appraisal indicates that the staff member has fully achieved effective results against all significant performance criteria and indicators as specified in the Performance Agreement and Performance Plan. **All roll over projects, the policies KPIs, compliance KPIs, awareness campaigns/ workshop/ training must be scored 3. (Official Attendance Registers must have NDM logo)**	51-64	No bonus
2	Not fully effective	Performance is below the standard required for the job in key areas. Performance meets some of the standards expected for the job. The review/assessment indicates that the staff member has achieved below **fully effective results against more than half** the key performance criteria and indicators as specified in the Performance Agreement and Performance Plan.	31-50	No bonus

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Level	Terminology	Description	Assessment Score	Performance Bonus Ratios
1	Unacceptable performance	Performance does not meet the standard expected for the job. The review/ assessment indicates that the staff member has achieved below fully effective results against almost all of the performance criteria and indicators as specified in the Performance Agreement and Performance Plan. The staff member has failed to demonstrate the commitment or ability to bring performance up to the level expected in the job despite management efforts to encourage improvement. **Performance below 51% of the target, the KPIs / reports/ POE or JSC which have not been submitted must be rated 1.**	Less than 30	No bonus

7. FEEDBACK

7.1 The one-on-one quarterly feedback session will be done by the supervisor after the end of each quarter WITHIN 30 days. The supervisor to submit the Acknowledgement-of Rating, the Development Area (if any were identified), Individual comments, Supervisor Comments and Head of Department Recommendations) attached hereto as Annexure (SCORECARD).

7.2 Annual Review Form will be based on the Supervisor's assessment of the Individual's performance in relation to the KPAs and JOB SPECIFICATION COMPETENCY (JSC) and standards outlined in this performance agreement and taking into account the Individual's self-assessment.

8. TIMETABLE AND RECORDS OF REVIEW DISCUSSIONS AND ANNUAL ASSESSMENT

The Individual must complete the Quarter Review before the due date. The due dates will be as follows:

Review Term	Term Description	Type of Review	Activities	Due date	Responsible Person
First Quarter	July to September	Informal reviews (one-one)	Reporting and uploading of POE	15 October	Employee
			Approval	30 October	Supervisor
(Midyear) Second Quarter	October to December	Formal review	Reporting and uploading of POE	15 January	Employee
			Approval	20 January	Supervisor
			Formal assessment by Divisional Manager for all employees in the unit.	25 January	Divisional Manager

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Review Term	Term Description	Type of Review	Activities	Due date	Responsible Person
			(Employee to download scorecard and attendance register to be signed)		
			Submission of scorecard and attendance register to PMS.	30 January	Employee
Third Quarter	January to March	Informal reviews (one-one)	Reporting and uploading of POE	15 April	Supervisor
			Approval	30 April	Employee
(2023/2024 Annual) Fourth Quarter	July to June	Formal review (Panel)	POE file submitted to PMS	30 August	Employee and supervisor

NB: The staff member must conclude the performance report within 10 working day after his or her return from leave that is less than 3 months. He or she must attach the proof of leave (sick notes / ESS report) on signed Performance report.

9. MANAGEMENT OF POOR PERFORMANCE OUTCOMES

The Supervisor will assist the employee in identifying developmental need to correct performance interventions together to address poor and non-performance at feedback sessions, or any time during each quarter of the performance cycle. Supervisor will provide records of such corrections and intervention, Managing of Unsatisfactory Performance. Should poor performance continue to persist Unit Manager and Head of Department should consider implementing PMDS.

A staff member who receives a performance rating below 3 in terms of the Five- Point Rating table in regulation 38(2) must-

(a) be assisted in developing his or her competencies through training, and supervision; and develop a revised personal development plan with his or her supervisor.

(2) The personal development plan must contain at least—

(a) a description of the behaviour and skills that require improvement;
(b) a description of the actions that will be undertaken to improve the identified behaviour and skills that require improvement;
(c) the deadlines for improvement;
(d) a schedule of meeting to assess improvements and provide feedback; and
(e) details of the potential consequences in the event that there is no improvement in performance.

(3) The meetings to assess improvements and to provide a feedback must be recorded in writing.
(4) The personal development plan to manage performance improvement must cover a maximum period of six months, at the end of which, a formal evaluation of performance must take place.

(5) The following alternatives must be considered in respect of a staff member whose performance has not improved to at least a performance that is fully effective:

(a) Continuation of the actions referred to in the personal development plan;
(b) alternative actions to improve performance;
(c) offering the staff member an alternative job within the municipality that is better suited to the

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staff member's behaviour and skills; or
(d) dismissal owing to incapacity in terms of the provisions of the Labour Relations Act.

(6) Poor work performance must be dealt with in in accordance with item 9 of Schedule 8 to the Labour Relations Act.

10. DISPUTE RESOLUTION

DISPUTE ABOUT PERFORMANCE AGREEMENT AND ASSESSMENT

10.1 Any dispute about performance objectives or targets must be mediated by the relevant head of department or directorate of the staff member to whom this function is delegated. If the dispute is not resolved to the staff member's satisfaction, the staff member may lodge a grievance in terms of the applicable procedures.

10.2 Any dispute relating to the conclusion of the performance agreement or an amendment to the performance agreement, must be referred to the head of the relevant department or directorate not later than five days of lodging the grievance in terms of the applicable procedures.

10.3 A dispute contemplated in sub-regulation (2) must be resolved within one month of receipt of the dispute by the head of the department, after-

(a) considering the representation from the staff member concerned and his or her supervisor; and

(b) consultation with the head of human resources.

10.4 A staff member who is not satisfied with the outcome of the procedure in sub- regulation (3), may lodge a dispute in terms of the dispute resolution mechanisms of the bargaining council.

11. AMENDMENT OF AGREEMENT

Amendments to the agreement will be in writing and can only be affected after discussion and agreement by all parties in terms of this contract. The performance agreement to be adjusted in line with the mid-year assessment / budget adjustment. The target should not be less than the original unless it's a budget issues or there was non-achievement during mid-year review (challenges). No weight should be adjusted unless there is a new KPI or removal of KPI. Amendments/ Adjustment of Performance Agreements to commence on 01 February and be concluded and submitted to PMS by 15 April.

12. EVALUATION

Supervisor

- The evaluation of the performance of the staff member must be conducted by that member's supervisor or his or her delegate.
- The staff member's supervisor must keep a record of all assessment meetings.



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The departmental performance moderation committees shall be constituted as follows:

a. Level 2:
   - The relevant heads of departments / acting HOD, who must act as chairpersons in the committees.

b. Level 3
   - The relevant heads of departments / acting HOD, who must act as chairpersons in the committees.
   - all managers / acting managers directly accountable to the heads of departments

c. Level 4 -12
   - The relevant heads of departments / acting HOD, who must act as chairpersons in the committees.
   - all managers / acting managers directly accountable to the heads of departments and
   - divisional manager responsible for that unit.

d. Internal audit unit and PMS Unit
   - The chairperson of the Audit and Performance Committee must conduct performance assessment for internal audit unit and PMS unit.

e. PMS Specialist must be a panel member for all levels to advise, guide, and provide support, including arrangements for secretariat services.

f. During departmental assessments, it is optional for an internal auditor to attend the departmental moderation committee and provide advice on audit matters.

Municipal moderation committee consists of:

- The municipal manager, who must act as the chairperson of the committee;
- all heads of departments
- head of municipal planning and organizational performance/ PMDS specialist / a senior human resource functionary to guide, advise and provide support, including arrangements for secretariat services;
- head of the municipal internal audit

13. SIGNATURES OF PARTIES TO THE AGREEMENT

The contents of this agreement have been discussed by the following parties:

Employee's name and surname: **Mahlangu Thomas Piet**

Employee's Signature	Supervisor' Signature	PMS Official's Signature

Signature: Date

Supervisor's name and surname: **Maphanga Nomhle**

Signature: Date

AND

Head of Department: ……..……

Signature: Date

Performance Management Unit:

Signature: Date

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ANNEXURE A: PERFORMANCE PLAN – 2026/2027

NAME AND SURNAME	MAHLANGU THOMAS P
PERIOD	2026/2027
DEPARTMENT	CORPORATE SERVICES
POSITION	LEGAL ADVISOR
LEVEL	3

KPI number	**Key Performance Indicators**	**Weight**	**Baseline 2023/24**	**2026/2027**					**POE**	**Total Budget allocated. R'000**
				Annual target	**1st Quarter Planned Target**	**2nd Quarter Planned Target**	**3rd Quarter Planned Target**	**4th Quarter Planned Target**		
KPA 1: GOOD GOVERNANCE AND INSTITUTION TRANSFORMATION										
M_11	Number of new/reviewed policies and enabling documents approved by Council by 30 June 2027.	3	2	2	N/A	N/A	N/A	2	Council Resolutions and Report to Council	OPEX
	Percentage of KPIs and projects attaining organisational targets **(Legal Services)** by 30 June 2027.	3	100%	100%	100%	100%	100%	100%	Quarterly Institutional Performance Report	OPEX
M_21	Attain clean audit opinion by 30 December 2026.	3	1 (Unqualified with matters)	1 (Clean audit)	N/A	1 (Clean audit)	N/A	N/A	AG's Audit Report	OPEX
M_22	Number of repeat audit findings (circular 88) by 30 December 2026.	3	0	≤ 0	N/A	≤ 0	N/A	N/A	AG's Audit Report	OPEX
M_23	Number of Action Plan on issues raised by the Auditor General tabled to Council by 30 December 2026.	3	1	1	N/A	1	N/A	N/A	Action Plan and Council resolution	OPEX
M_24	Percentage of AG Findings raised in the Management Letter resolved **(Legal Services)** by 30 June 2027.	3	100%	100%	N/A	N/A	40%	100%	Signed progress report on the implementation of the Audit Action Plan	OPEX
M_15	Percentage of action plans implemented to address Strategic Risks Identified per quarter **(Legal Services)**	3	90%	90%	90%	90%	90%	90%	Signed Quarterly Strategic Risk report	OPEX

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M_16	Percentage of action plans implemented to address Operational Risks Identified per quarter **(Legal Services)**	3	98%	98%	98%	98%	98%	98%	Signed Quarterly Operational Risk report	OPEX
M_17	Percentage of action plans implemented to address Fraud and corruption Risks Identified per quarter **(Legal Services)**	3	96%	96%	96%	96%	96%	96%	Signed Quarterly Fraud and corruption Risk report	OPEX
M_40	Percentage of internal audit recommendation implemented by 30 June 2027 **(Legal Services)**	3	100%	100%	100%	100%	100%	100%	Signes Quarterly IA report	OPEX
M_41	Percentage of audit committee resolutions implemented by 30 June 2027	3	100%	100%	100%	100%	100%	100%	Signed Quarterly Audit committee resolution register	OPEX
	Percentage on implementation of Council Resolutions resolved **(Legal Services)** per quarter.	4	100%	100%	100%	100%	100%	100%	Quarterly report on implementation of Council resolutions	OPEX
M_36	Percentage of Strategic Lekgotla resolutions implemented by 30 June 2027.	3	100%	100%	100%	100%	100%	100%	Signed Strategic Lekgotla monitoring reports	OPEX
	Compile and sign the annual performance agreement for the 2026/2027 financial year and submit to PMS unit by 30 July 2027	3	1	1	1	N/A	N/A	N/A	Compliance certificate from PMS Unit	OPEX
	Submission of 2025/2026 Annual performance evaluation on e-IPMS (system) by 29 August 2026.	3	1	1 (annual assessment)	1 (annual assessment)	N/A	N/A	N/A	Compliance certificate from OPME & PMDS Unit Unit	OPEX
	Number of self-assessment report compiled and submitted to supervisor per quarter	3	4	4	1 (annual assessment)	1 (Q1 assessment	1 (midyear assessment)	1 (Q3 assessment)	Quarterly Compliance Certificate from OPME & PMDS Unit	OPEX
	Number of quarterly leave reconciliation report submitted to Departmental General Manager/ Corporate services department (within 30 days after end of each quarter)	3	4	4	1	1	1	1	Compliance certificate from corporate services	OPEX
	Percentage of leave requests captured on the system within the prescribed timeframes in accordance with the leave management policy by 30 June 2027	3	100%	100%	100%	100%	100%	100%	Compliance Certificate from Corporate Services	OPEX

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KPA 2: FINANCIAL VIABILITY										
M 53	Percentage of operational budget actually spent (circular 88) by 30 June 2027.	5	90%	90%	20%	40%	60%	91%	Signed Operational Expenditure progress report	**R2, 500 000**
	Attendance of scheduled Bid Specification Committee Meetings (100%)	4	100%	100%	100%	100%	100%	100%	Signe quarterly Bid Specification Committee	OPEX
KPA 3: CONTRACT DEVELOPMENT & MANAGEMENT										
	Number of performance evaluation report for all the Legal Services, Service Providers loaded in the system within 15 days after the end of each quarter.	2	4	4	1	1	1	1	Quarterly Reports on contractors' evaluations	OPEX
	Development and finalisation of Memorandum of Understanding/Service Level Agreements and/or Memorandum of Agreements within 30 days of receipt of an end user Contract Request. (Legal Services).	2	100%	100%	100%	100%	100%	100%	Contract Development Register	OPEX
	Percentage of Employment Contracts processed within 15 days from the date on which the Employee assumed duty.	4	100%	100%	100%	100%	100%	100%	Employment Contract Register	OPEX
KPA 4: LITIGATION MANAGEMENT										
	Number of Litigation and Personnel Reports submitted to the OMM per quarter	6	4	4	1	1	1	1	Quarterly Litigation and personnel Report.	OPEX
	Percentage of Disciplinary Charge Sheets issued within 30 days from the date of appointment of a Prosecutor by the OMM	4	100%	100%	100%	100%	100%	100%	Prosecutor's appointment Letter and served charge sheet	OPEX

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	Number of disciplinary case status reports submitted to the Municipal Manager within the prescribed reporting period	4	4	4	1	1	1	1	. Quarterly Personnel Report	OPEX
	Percentage of Disciplinary Actions finalised within 6 months from date of service of the Charge Sheet against the Employee.	4	60%	60%	15%	30%	45%	60%	Quarterly Personnel Report.	OPEX
KPA 5: POPIA/PAIA COMPLIANCE										
	Number of compliance report submitted to the Information Regulator by 30 June 2024	4	1	1	1	N/A	N/A	N/A	Submission report to Information Regulator	OPEX
	Refresher training on POPI/PAIA Compliance by 30 June 2024.	3	1	1	N/A	N/A	N/A	1	Attendance Register and Presentation	OPEX
	Review, update and facilitate approval and publication of the Municipality's PAIA Manual in compliance with the Promotion of Access to Information Act and applicable Information Regulator requirement by 30 June 2027	3	1	1	N/A	N/A	N/A	1	Reviewed PAIA Manual AND Council Resolution	OPEX

I/We, the undersigned hereby certify that the above workplan is correct.

Employee Name & Surname: <u>Mahlangu Thomas Piet</u>

Signature: Date

Employee's Signature Supervisor' Signature PMS Official's Signature

Supervisor Name& Surname: Maphanga Nomhle

Signature: Date

ANNEXURE B: PERSONAL DEVELOPMENT PLAN 2026/2027

Skills performance gap (in order of priority)	Outcomes expected (measurable indicators, quantity, quality and time frames)	Suggested training and/or development activity	Suggested mode of delivery	Suggested time frame	Work opportunity created to practice skills/ development area	Support person
	N/A	N/A	N/A	N/A	N/A	N/A
	N/A	N/A	N/A	N/A	N/A	N/A
	N/A	N/A	N/A	N/A	N/A	N/A

ANNEXURE C: DISCLOSURE OF INTEREST FORM 2026/2027

Name of Business	Registration (CK) Number	% Owned

Employee's Signature Supervisor' Signature PMS Official's Signature

NONE	NONE	NONE
NONE	NONE	NONE

Other Interests:

I hereby certify that the above information is complete and correct to the best of my knowledge.

_____ _____

Signatures **Date**

_____ _____ _____

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